

NON-DISCLOSURE AGREEMENT AND NON-USE AGREEMENT
AAC-2026-ChBA

1. The Federal Aviation Administration Challenge Based Acquisition (ChBA) Announcement Number AAC-2026-ChBA for the procurement of the Alaska Automation Capability (AAC) includes export controlled technical data.
2. The undersigned, as an authorized representative of _____
(insert company name) (hereinafter "the recipient"), in consideration of being furnished with technical data related to the AAC, hereby agrees that the recipient will only use said data it receives for the purpose of responding to Announcement Number AAC-2026-ChBA.
3. Prior to receipt of the export-controlled attachments outlined in Announcement Number AAC-2026-ChBA, the recipient shall electronically sign, pursuant to the E-Sign Act (Title 15, U.S.C., Sec 7001, et seq.), and provide a copy of this Non-Disclosure and Non-Use Agreement to the Federal Aviation Administration contracting officer/office responsible for this announcement.
4. Further, the recipient and its subcontractors and vendors shall be pre-approved by running a name check on the Department of Commerce's Consolidated Screening List AAC-2026-ChBA prior to receiving access to EAR99 export-controlled technical data to ensure the recipient, subcontractors, and vendors are not prohibited end users. The recipient shall provide the FAA with a list of employees who will receive or have access to the export-controlled attachments. The employee list shall include subcontractors and vendors. The recipient shall not provide or disclose such data to any subcontractor or vendor until the subcontractor or vendor has executed a Non-Disclosure and Non-Use Agreement as this agreement as well as a Business Declaration Form and remit it to Federal Aviation Administration. AAC-2026-ChBA.
5. For technology received as part of the AAC Announcement AAC-2026-ChBA, the recipient, subcontractors, and vendors will abide by the EAR99 marking. This means that the documents cannot be exported nor re-exported to country group E:1 or E:2 countries/persons (see Supp.1 to Part 740 of the EAR), nor can be made available to any national of such country, without the appropriate license. In addition, the information in this document cannot be exported nor re-exported to an end-user or for an end-use that is prohibited by Part 744 of the Export Administration Regulations (15 C.F.R. Part 744). The recipient shall not disclose AAC Announcement AAC-2026-ChBA, or any attachments thereto, to any person who appears on the Consolidated Employee Screening List without an export license to do so.
6. The recipient acknowledges that this agreement grants it no rights to commercial uses of any such data received pursuant to this agreement.
7. The recipient agrees to adopt operating procedures and physical security measures

designed to protect the data from disclosure or release to unauthorized third parties.

8. The recipient agrees to promptly destroy all the technical data received under the referenced announcement (and any copies made of such data) when the purpose of this agreement is fulfilled. The recipient further agrees to certify in writing to the Federal Aviation Administration contracting officer/office responsible for this Challenge Based Acquisition Announcement as to the destruction of the data. Included with the return of a certification of destruction, the recipient shall provide to the contracting officer/office responsible for issuance of this Challenge Based Acquisition a list of the names and addresses of subcontractors and vendors that received a copy of the technical data package or part of the technical data package provided with the announcement referenced herein, and sworn certification that anyone who has seen it has destroyed it and not shared it with anybody else.
9. The recipient agrees to indemnify the United States Government, and its agents and employees, from all liability arising out of, or in any way related to, the misuse or unauthorized disclosure by the recipient, its employees or agents, of any such data it receives. The recipient will hold the United States Government, and its agents and employees, harmless against every such claim or liability, including attorney fees, costs, and expenses, arising out of the misuse or unauthorized disclosure of any such data supplied to the recipient hereunder.
10. Notwithstanding the foregoing, any obligation of confidentiality by this agreement shall not extend to export controlled data:
 - (i) Which is legally and without restriction in the possession of recipient, its employees, agents or contractors prior to the date of receipt hereunder from the Federal Aviation Administration;
 - (ii) Which enters the public domain at any time through no fault of the recipient, its employees, agents or contractors; or
 - (iii) Which is disclosed by a third party without restriction or without breach of this agreement and without inducement by the recipient or the Government of such party to breach any agreement or obligation of confidentiality.

Signed:

Name of Recipient Organization

Authorized Signature

Date

Typed Name

Title

Address of Recipient Organization

Remit electronically signed copy, pursuant to Section 3 above, of Non-Disclosure and Non-Use Agreement to the AAC CO via email at Helaina.K.Germosen@faa.gov.